

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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AMARE LEWIS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
RICARDO JOSEPH (SHIELD NO. 12372), POLICE
OFFICER VASSILIO AIDINIOU (SHIELD NO. 2826),
POLICE OFFICER KATRINA ACEVERO (SHIELD NO.
16692).

Defendants.
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AMENDED COMPLAINT

Jury Trial Demanded

10-CV-5291 (RJD) (RER)

PRELIMINARY STATEMENT

1. This is a civil rights action, alleging that the City of New York and several New York City Police Officers violated plaintiff's rights under 42 U.S.C. § 1983, the Fourth and Six Amendments to the United States Constitution. Specifically, plaintiff alleges that, on August 15, 2010, defendants falsely arrested him, used excessive force and made false allegations about him to the Kings County District Attorney's Office. Plaintiff seeks compensatory and punitive damages, attorney's fees and costs, and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth and Sixth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Venue is proper in the Eastern District of New York pursuant to 28 U.S.C. § 1391 (b) and (c).

PARTIES

4. Plaintiff is a resident of the State of New York who lives in Brooklyn.

5. The City of New York (the “City”) is a municipal corporation organized under the laws of the State of New York.

6. Ricardo Joseph is a member of the New York City Police Department who was acting under color of state law and in his capacity as a City law enforcement officer at all relevant times.

7. Vassilio Aidiniou is a member of the New York City Police Department who was acting under color of state law and in his capacity as a City law enforcement officer at all relevant times.

8. Katrina Acevero is a member of the New York City Police Department who was acting under color of state law and in her capacity as a City law enforcement officer at all relevant times.

9. Joseph, Aidiniou, and Acevero are liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. The defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

10. On August 15, 2010, at approximately 3:40 a.m. in the vicinity of Rogers Avenue and Snyder Avenue in Brooklyn, plaintiff was walking home when someone in an unmarked police car beckoned to plaintiff and said “yo stop”.

11. Plaintiff, unaware that this car contained police officers, became frightened and began running. Two plainclothes officers chased plaintiff. When the officers grabbed him, plaintiff told them that he had “no money”.

12. The officers then searched plaintiff. Plaintiff explained that he had no contraband and had done nothing wrong. One of the officers then accused plaintiff of “throwing something”. Plaintiff asked the officers for their badge numbers. One of the officers, infuriated by this request, twisted plaintiff’s arms painfully behind his back and placed plaintiff in painfully tight handcuffs.

13. When plaintiff requested that his handcuffs be loosened, his pleas were ignored. Plaintiff was then transported to the 67th Precinct for arrest processing.

14. Plaintiff’s designated “arresting officer” was Ricardo Joseph.

15. While plaintiff was incarcerated in the precinct, Joseph, pursuant to a conspiracy with other officers involved in plaintiff’s arrest, prepared police reports which falsely stated that plaintiff had committed the crimes of resisting arrest and disorderly conduct.

16. Later that afternoon, plaintiff was transported to Brooklyn Central Booking.

17. While plaintiff was confined in Central Booking, Ricardo Joseph conveyed false information to prosecutors in order to have plaintiff prosecuted.

18. On August 15, 2010 at approximately 9:00 p.m., plaintiff was arraigned by a criminal court judge and released on his own recognizance. On October 5, 2010, plaintiff accepted an ACD.

19. Plaintiff suffered damage as a result of defendants’ actions. Plaintiff was deprived of liberty, suffered emotional distress, mental anguish, fear, anxiety, embarrassment, and humiliation. Further, plaintiff experienced pain, numbness, and bruising from the excessively tight handcuffs.

**FIRST CLAIM
(FALSE ARREST)**

- 20. Plaintiff repeats the foregoing allegations.
- 21. No officer observed plaintiff commit a crime on August 15, 2010.
- 22. At no time on August 15, 2010 did plaintiff commit a crime.
- 23. Accordingly, defendants violated the Fourth Amendment because they arrested plaintiff without probable cause.

**SECOND CLAIM
(UNREASONABLE FORCE)**

- 24. Plaintiff repeats the foregoing allegation.
- 25. In the course of arresting plaintiff, the officers twisted plaintiff's arms and handcuffed plaintiff in an unreasonably tight manner.
- 26. This use of force was objectively unreasonable.
- 27. Accordingly, defendants violated the Fourth Amendment because they used unreasonable force on plaintiff.

**THIRD CLAIM
(FABRICATION OF EVIDENCE)**

- 28. Plaintiff repeats the foregoing allegations.
- 29. Defendants, pursuant to a conspiracy, falsely stated to the Kings County District Attorney's Office that plaintiff had committed a crime.
- 30. Accordingly, defendants violated the Sixth Amendment for fabricating evidence against him and denying him a fair trial.

**FOURTH CLAIM
(MONELL CLAIM)**

- 31. Plaintiff repeats the foregoing allegations.

32. The City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

33. Upon information and belief, the City of New York, at all relevant times, was aware that the defendants are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees;
- d. Such other and further relief as the Court may deem just and proper.

DATED: April 7, 2011
New York, New York



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